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Provision of June 20, 2024

Register of provisions

No. 401 of June 20, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree of June 30, 2003, No. 196), as
amended by legislative decree of August 10, 2018, No. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000, adopted by resolution of June
28, 2000;

REPORTING Prof. Pasquale Stanzione;

1) THE INSTRUCTIONAL ACTIVITY CARRIED OUT Premise.

By notes No. 139761/133009 of October 12, 2023 and No.
25538/133009 of February 29, 2024 (notified on
the same dates of adoption via certified electronic mail), which are to be understood as fully
referred to and reproduced herein, the Office initiated, pursuant to
Article 166, paragraph 5 of the Code, two
proceedings for the adoption of the measures referred to
in Article 58, paragraph 2 and the administrative financial penalties
referred to in Article 83, paragraphs 4 and 5 of the
Regulation against Fastweb S.p.A., (hereinafter "Fastweb" or "the Company"), represented by
the legal representative pro tempore, with registered office in
Milan, Piazza Adriano Olivetti No. 1, Tax Code
12878470157.

These proceedings were initiated following the
receipt, by the Office, of multiple
reports and complaints.

In particular, the first of the two proceedings, No.
139761/133009, concerns various promotional
telephone contacts made by Fastweb and its sales network to acquire
new subscriptions to fixed, mobile, and internet services. It also includes hypotheses of
violations related to possible shortcomings in

the management of former customers' data, in terms of the security of the collection and storage systems, the failure to respond to requests for access, deletion, rectification, and the exercise of other rights of the data subject.

The second act of contestation, No.

25538/133009, also arises from reports of the last type described, namely incomplete handling of requests concerning the exercise of rights, which the Office received after October 12, 2023, the date of notification of the first act initiating the procedure.

This latter also includes hypotheses of violations arising from two reports (Nos. 316604 and 331661) related to the retention of customers' contact data for sending promotional communications, even after the termination of the contract and for an additional 24 months.

1.1.1) The proceeding No. 0139761/133009. The request for information of December 2, 2022 and the response provided by Fastweb.

As mentioned, following 58 reports and complaints, the Authority, with note ref. prot. 75428 of December 2, 2022, sent Fastweb a cumulative request for information for various files related to the period from October 1, 2021 to October 31, 2022, concerning the area of unwanted calls (49 files), in addition to further profiles regarding: communications sent by mistake to subjects other than customers (2 files); insufficient response to requests for the exercise of the rights of the data subjects (1 file); poor management of customer data in terms of security (6 files).

By note of January 20, 2023, the Company provided a detailed response from which it emerges that:

- approximately 80% of the reports related to unwanted contacts would be attributable to calls made from numbers not registered in the Register of Communication Operators (ROC) or otherwise not belonging to the Company's official sales network;
- in this regard, the Company highlighted that it had reported such abusive conduct by third parties to the Postal Police of Milan;
- for other cases (5 files), it stated, with documentation, that the calling numbers were correctly registered in the ROC by some authorized partners such as Supermoney S.p.A. or Accueil s.r.l., who would have collected the contact data of the reporters during their own initiatives conducted via the web, within which the interested parties would have given their specific consent to the processing of personal data for marketing purposes;

- in one case, the promotional call would have occurred following a request for a callback from the reporter.

Regarding the exercise of the rights of the data subjects pursuant to Articles 15-22 of the Regulation (EU) 2016/679, the Company represented, in the only case that led to the initiation of an investigation, that “unlike what is indicated in the report, during the indicated period, the [reporter, ed.] had interactions with the Fastweb customer service that then led in June 2022 to the closure of the case with the reimbursement of the amount due” and that, therefore, “no shortcomings are noted in the exercise of the rights of the interested parties.”

Regarding the reported issues concerning the security of the personal data of the interested parties who received promotional calls for products and/or services XX, it was first specified that the reporters had been – or were still, at the time of the checks – Fastweb customers, for example using ADSL_WS technology. This type of technology requires that the telecommunications company providing the service, in this case Fastweb, utilizes the physical infrastructure owned – or managed – by another telecommunications operator for the customer's service. Therefore, any intervention on the network, whether for activation or support (fault selection or assistance requests), requires the necessary involvement of the managing or owning entity of the network. Consequently, it is necessary that, in such situations, the user data requiring intervention be communicated to the owner or manager of the network. This sharing is carried out through the portal made available by the manager, whose security standards have been subject to specific interventions at the request of AGCOM (see files no. 175615; 1795557; 183763); within the scope of these operations, the interested parties indeed complain of having received promotional communications not only from the network manager but also from other companies. Furthermore, from investigations conducted by Fastweb on the records of other reporters, it emerged that these had been accessed and viewed by employees other than the personnel specifically assigned to this task. Fastweb has therefore taken disciplinary action against the personnel for whom it has established responsibility.

Moreover, the Company added (producing the relevant documentation) that the facts in question have been reported to the Judicial Authority, so that it could ascertain any involvement of third parties also in other cases, hypothetically more serious than those dealt with internally (see files no. 175615; 1795557; 183763).

1.1.2) The subsequent request for documents dated March 31, 2023, and Fastweb's response dated April 30, 2023.

In light of the above, the Office, with subsequent note prot. no. 1492653 dated March 31, 2023, focused the investigation on the contacts made by four partner agencies that acquire demographic lists from their list providers, inviting the holder, pursuant to Article 157 of the Code, to clarify, specifically:

- the methods of acquiring consent for commercial purposes by the partner agencies, as well as the methods of communication to third parties of the personal data thus collected;
- whether in the collection of consents they acted as holders or as data processors;
- what checks the Company performs on the demographic lists thus acquired from its partners;
- in particular, whether the version of the demographic lists, once transmitted to Fastweb, is the final one, or whether the partner agency can continue to modify it even after transmission.

In addition, a request was made for the list of promotional contacts made during the period from October 1, 2021, to October 31, 2022, using lists thus acquired, as well as the number of contracts and activations made following the aforementioned contracts.

Finally, the Authority requested information:

- on the "order blocking" system, requesting to quantify the blocked contacts in the selected thirteen months and to specify the reason for each block (numbering out of list, outgoing numbering not

registered with the ROC or unauthorized), also illustrating what measures the operator would have undertaken.

- on the status of the discontinuation of the outbound calling channel of the agencies, as per the project shared with the Authority during the investigation of the previous provision no. 112 of 2021 (in www.gpdp.it, doc. web no. 9570997);
- to produce a list of purchase proposals (PDA) coming from its sales network that led to the activation of electronic communication services during the period from March 6, 2023, to March 13, 2023, inclusive (hereinafter also referred to as the "sample week"), divided between "consumer" and "business," in order to verify the correctness of the promotional contact.

The Company responded with a note dated April 30, 2023 (ref. prot. 0070466/23) – for whose truthfulness it is liable pursuant to Article 168 of the Privacy Code – producing, following a request (accepted) for an extension of the deadlines, the list of PDAs completed in the sample week and also stating that:

- some partners of the sales network who perform outbound contacts in various capacities (and in particular, those remaining after the discontinuation activity initiated during the procedure culminating in injunction order no. 112 of 2021) have received authorization from the Company to collect contact data through their own portals or social initiatives, or to purchase demographic lists related to business customers, for processing for promotional purposes exclusively referable to Fastweb and in compliance with the instructions given by the same Company. This last faculty is reserved for those particular so-called Business Partner Agencies that deal with promoting Fastweb services solely to business clientele. The lists that can be purchased in this way are, however, only those containing contacts whose source is the General Telephone Directory (ETG);
- on the contrary, "in order to ensure the highest standards regarding the controls carried out on contacts/outbound and the legitimacy concerning the processing of personal data," Fastweb's partners are not authorized under any circumstances to directly purchase lists of contacts related to residential customers. In fact, as represented following provision no. 112/2021, this activity is carried out in a centralized manner exclusively by Fastweb. The lead collection activities, i.e., the so-called "Initiatives," must, in any case, be pre-authorized by the Company, and such authorizations are based on the presence of all compliance factors with respect to the applicable regulations;
- in cases where a Fastweb partner has been authorized to collect and use leads through their own web portal rather than a social initiative or their own business customer lists, these are subject to verification by Fastweb both prior to and after the fact. The process by which the so-called "Initiatives" or the partner's own business customer lists are managed requires that, before the contacts are made, Fastweb is informed of the details to carry out the appropriate checks and authorize the collection and use of the lists. Only upon a positive outcome of these checks can the partner begin collecting leads, which are subsequently communicated to Fastweb through the prior uploading of the same on the dedicated portal XX. At this point, it is possible to initiate contact activities on the numbers present in the uploaded list, on which, it is noted, control activities (so-called mystery calls) are also carried out;
- the aforementioned records are uploaded to the portal XX, through which the following activities are carried out:
 - i. deduplication activities with respect to Fastweb's blacklists;
 - ii. management of overlap to prevent the same record from being assigned to multiple partners during the same planning, which makes the controls carried out more effective;
 - iii. assignment to the partner to carry out the outbound contact; with reference to the innovations introduced regarding the Public Opposition Register (hereinafter also "RPO"), the Company represents that contacts made on the same day the records are collected are, in all respects, lawful even in the absence of prior verification with the RPO. Conversely, when the contact occurs on a date subsequent to the collection of consent, it is always preceded by verification of the same with the RPO, which is a condition for the legitimacy of the processing.
- As an additional measure, the company has provided that the compensation for the sale made is paid

to the partner with the condition that the number used for the subscription belongs to assigned lists. For further control, Fastweb carries out, through the third-party company XX, activities of so-called "PDA Validation," whereby the number assigned to the partner is contacted via platform XX, on which a sale has been declared, and it is verified that the call is answered precisely by the holder of the contract loaded into the Order Entry system, as well as that the sales experience followed the correct course.

- As of now, over 50% of the contracts entered are verified, and of these, 100% confirm the subscription and the holder of the contract.

- The adoption of the so-called "order blocking" system allows for the prevention of the entry and consequently the activation of contracts that do not comply with the policies adopted by Fastweb for the protection of personal data. The Order Entry platform verifies before the entry of personal data that: i) the telephone number called has been assigned by XX to that partner before the contact; ii) the partner has entered on XX a sales declaration with the CF/P.IVA of the contacted party. If these conditions are met, the Agency can enter the contract; alternatively, the system generates a "KO" and the contract cannot be entered. All of this is further verified through the cross-checking by the Tool Log on which the logs of outbound contacts made by the partners are loaded. That said, from October 1, 2021, to October 31, 2022, this order blocking system generated 3324 KOs related to attempts to enter contracts resulting from outbound contacts.

- Where the system blocks an entered order, Fastweb first requests necessary clarifications from the Agency that attempted the entry in violation of one of the imposed rules. If such clarifications are insufficient and it is therefore a case outside the list or out of range or the use of an unregistered calling number, the matter is submitted to the attention of the Sales Privacy Committee, the independent corporate body responsible for this.

- Regarding the customer, they are informed of the occurrence to collect, in a traceable manner, the intention to proceed with the activation.

1.1.3) Verification with the opposition register managed by the Ugo Bordoni Foundation. In order to carry out the necessary checks regarding the correctness of the aforementioned telemarketing activities, on September 28, 2023, the Office sent to the Ugo Bordoni Foundation, manager of the Public Opposition Register, a list of 6592 telephone numbers drawn from approximately thirty thousand PDAs activated during the sample period from March 6 to March 13, 2023. In this context, information was requested, pursuant to Article 157 of the Code, on which customer telephone numbers, as of January 31, 2023,

were registered in the RPO, requesting to include in the results also the registrations prior to the entry into force of the Presidential Decree of January 27, 2022, no. 26 establishing the new register, and in particular up to July 27, 2022, the date on which the registrations in the old register were transferred to the new one (art. 7, co. 11 ibidem). On October 2, 2023, the aforementioned Foundation sent its response, from which it emerged that at the time of the promotional calls made by this Company, 511 telephone numbers were registered in the Public Register of Oppositions, accounting for approximately 7.75% of the total number of numbers contacted during the sample period.

1.1.4) Contestation of violations and defenses of the Company.

The Office, in light of all the elements and documents acquired as a whole, adopted the aforementioned initiation act of the procedure no. 139761 of October 12, 2023, in which, in summary, it considered the conduct of the company to be possibly in contrast with the regulations on personal data under two aspects:

- the access of company personnel not involved in the management of the practices opened for the resolution of technical issues – and therefore not “authorized” pursuant to art. 29 of the Regulation – requires an assessment of the possible violation of articles 5, par. 1, lett. f) and 32, par. 1, lett. b), of the Regulation;

- having contacted 511 telephone numbers in the context of telemarketing activities carried out during the sample period from March 6 to 13, 2023, while the same numbers were registered in the RPO – with the consequent obligation of non-contactability – entails the recognition of the conditions for the

violation of art. 130, paragraphs 3 and 3-bis of the Code, concerning electronic communications, as well as, more generally, of art. 6, par. 1 lett. a) of the Regulation, regarding the lack of the necessary legal basis of consent to legitimize the processing of the data in question for promotional purposes. In response to the initiation of the procedure, the Company on November 14, 2023, submitted its defensive memoranda (ref. prot. 153235/23), with which, along with the hearing held at the Authority's headquarters on December 5, 2023 (ref. internal prot. 0162150/23), it requested the closure of the procedure on the basis of the following reasons.

First of all, regarding the alleged access of unauthorized personnel to the management of the technical issues underlying the alleged violation of articles 5, par. 1 and 32, par. 1 lett. b) GDPR, the Company believes that distinctions should be made.

In fact, the processing of telephone data in the cases of two of the three contested files, nos. 175615 and 179555, was carried out by a so-called third-party network operator, in this case XX, based on interconnection agreements for the provision of termination services on fixed and mobile networks. In particular, according to these agreements, the virtual operator, in this case Fastweb, utilizes the physical infrastructure owned – or managed – by another telecommunications operator, in this case XX, for any intervention on the network, activation, or support (fault selection or assistance requests). With this latter operator, in accordance with AGCOM provisions, Fastweb shares necessary information for the execution of service contracts, such as user data. This occurs through IT systems whose operation and compliance with security standards is solely the responsibility of the hosting operator who owns the network, acting as an independent data controller, namely XX.

On this point, Fastweb recalls what was already illustrated during the investigation that led to the previous provision no. 112 of March 25, 2021.

In fact, already in the defensive acts of that procedure, the Party complained, also with reports submitted to this Authority, about the traceability of the unlawful processing of telephone data of its customers to illegal accesses to databases held by XX, as also evidenced by proceedings initiated with other supervisory Authorities, regarding the same facts.

Regarding the competitive aspect, in particular, the Company reiterated during the hearing the necessity for the line holder to adopt standardized conditions, also in light of the regulatory provisions governing the sector, such as, respectively, the Code of Electronic Communications (Legislative Decree of August 1, 2003, no. 259) and AGCOM resolutions regulating interconnection services. A completely different matter, however, would concern the other of the three contested files, no. 175615, arising from episodes of harassment and threats for having refused commercial offers received from a Fastweb customer and coming from unknown sources.

Following well-founded suspicions about an operator from a call center, the Company conducted targeted checks and identified, criminally reported, and sanctioned the responsible party for such unlawful acts.

This highlighted that the sending of insulting and threatening SMS, later traced back to the employee in question, is indeed a serious matter but not attributable to the Company through its duty to prove the adoption of adequate models for preventing violations of personal data within its internal organization. This is because the perpetrator of the acts had the right to process, among others, that data, according to the internal distribution system of roles and tasks within the company, albeit limited to the promotional purposes that characterized the role of the operator in question.

However, nothing could have prevented the Company, in the event that the employee authorized to process a personal data for a certain purpose had decided to use it, as it later was, to send inappropriate content: the fact does not fall within the type of risks for which the company is normally required, in general, to protect itself by identifying security measures.

To this end, those already prepared in compliance with the previous corrective and sanctioning provision no. 112 of 2021 (to which the party refers) proved to be adequate, which ordered "the adjustment of security measures for access to its databases in order to eliminate or significantly reduce the risk of unauthorized access and processing not compliant with the purposes of collection."

Regarding the dispute referred to in point no. 2), from the total of 511 numbers considered in the

sample period, 285 should be preliminarily excluded since, although belonging to subjects registered in the Public Registry of Oppositions prior to the day of contact, they were nonetheless not used by the holder for promotional or re-contact purposes, as they pertained to customers who purchased Fastweb services in person, or at a store or sales point, and not through tele-selling.

The Office's investigation should therefore be limited to the only numbers of the sample period that were actually contacted for the remote purchase of Fastweb services, corresponding to 226 numbers, or approximately 3.43% of the total of 6592 sample numbers.

In this context, it would be necessary to further distinguish between calls on one hand (i) inbound and (ii) websales (the latter further divisible into call me-back and comparators), made by virtue of the consent of the interested party subsequent to the date of registration in the Registry and therefore legitimate pursuant to art. 1, co 6 of law no. 5 of January 11, 2018.

On the other hand, (iii) outbound calls would require separate treatment. In fact, if these are made to numbers of non-customers, deriving from lists acquired in compliance with the principles imparted by the holder, they would presuppose the acquisition of the consent of the interested party in a legitimate manner.

Moreover, the number is always verified against the Registry of Oppositions every time a promotional "cold" call is expected to be made, that is, on a day subsequent to the day of acquisition of consent.

As for calls to the numbers of its own customers, these, according to Fastweb, would be legitimate in themselves even in the absence of marketing consent, as they result from a legitimate business interest in proposing to its customers improved services or services related to those already purchased.

1.2.1) The second proceeding: the request for information of November 28, 2023, and the response of Fastweb S.p.A. of December 19, 2023.

With a subsequent request for information dated November 28, 2023, ref. prot. 0158998/23, the Office submitted to Fastweb S.p.A. the report ref. prot. 167397/23 concerning the alleged illegitimacy of the web form for modifying consents that it had sent via email to customers on the occasion of changes to the data processing notice.

From the report, it emerged that on the occasion of the inclusion in the privacy policy of new information regarding the retention for promotional purposes of customers' personal data, including telephone numbers, for up to 24 months from the termination of the contract, customers were presented with a pre-filled consent model such that, in the absence of any selection by the interested party, the retention of data (including telephone data) for promotional purposes was considered accepted.

Conversely, the procedure for making any changes to the consents appeared deficient in the saving function, which nonetheless rendered the right to object to processing not exercisable.

The company, in its response note of December 19, 2023 (ref. prot. 167397/23), first illustrated that the option to save changes was regularly recognized by the appropriate function located at the bottom of the consent modification page.

Secondly, the company denied the violation of the opt-in principle as it was not applicable in this case: on the contrary, the legal basis for the retention of contact data of former customers for promotional purposes would be the mere legitimate business interest in transmitting commercial communications even after contracts have ended, for 24 months and until their opposition.

1.2.2) The contestation of violations and the defenses of the company.

The Office, in light of all the elements and documents acquired, adopted a new act to initiate the procedure no. 25538 of February 29, 2024, in which, in summary, it considered the conduct of the company to be in possible conflict with the regulations on personal data under the following additional profiles:

- the processing of data of customers, both ongoing and terminated less than 24 months ago, for promotional purposes, explicitly carried out on the basis of the unopposed legitimate interest, would result in violation of Articles 6 of Regulation (EU) no. 679/2016 and 130 of the Privacy Code, which instead identify prior and unequivocally given consent, for each contact data (including telephone number), as the only legal basis for sending electronic communications of a promotional nature, even for services connected or related to those already purchased (with the sole exception of art. 130 co. 4 of the Code).

interest as a legal basis for processing personal data in the context of direct marketing, provided that the processing is limited to similar products or services previously purchased by the customer.

- It is important to note that the legal basis of legitimate interest cannot be invoked in the case at hand, as extensively discussed below);

- While the inadequacy of the legal basis of legitimate interest for the processing in question remains, regarding the need to maintain a qualified relationship with former customers, in order to relate it to the legal basis of legitimate interest, it does not seem justifiable in every case that it extends indiscriminately to all contact data known by the company for such a long period as 24 months from termination, with possible detriment to the rights and freedoms of the data subjects based on what is established by Articles 5, paragraph 1, letters c), e), and 2 of the Regulation concerning data minimization, storage limitation, and accountability;

- The privacy notice does not comply with the principles of clarity, transparency, and ease of understanding as per Article 12, paragraph 1 of the Regulation. The processing in the context of contract execution and those for advertising purposes, to which the respective legal bases are linked, are elaborated incompletely. It has been found that only some promotional processing is expressly linked to the legal basis of consent: others, such as the contested processing (specifically the update of the offer and promotions that allow discounts or benefits on already activated services), despite having the same legal nature, are considered akin to forms of data processing for contractual purposes.

- Fastweb has failed to respond promptly and exhaustively to various requests for the exercise of rights by customers, which they have complained about in various ways. The company, after deferring the deadline for submitting defensive writings as per Article 166, paragraph 6 of the Code, which the Authority recognized in accordance with the regulatory provision of Article 13 of Regulation No. 1 of 2019 of the Office of the Guarantor concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor for the protection of personal data (available at www.gpdp.it, web doc. no. 9107633, also "Regulation No. 1/2019"), in a memorandum dated April 15, 2024 (ref. prot. 47417/24) first observed that file no. 133009 is the same as the procedure that led to provision no. 112 of March 25, 2021, as well as the present procedure initiated by act of October 12, 2023 (ref. prot. 139761/23) and continued by act of February 29, 2024 (25538/23).

Regarding the new processing of personal data announced with the update of the notice sent to the Customer Base, consisting of sending information about the goods and/or services offered by Fastweb for 24 months from the termination of the contractual relationship and subject to any opposition by the data subject, which is the main subject of the present dispute, the company has provided some clarifications.

First of all, both the planning of the campaign and the execution of individual contacts with customers and former customers would be validly supported by the legitimate business interest in bringing the initiatives in question to their attention, regardless of their consent. In any case, no sending of promotional material, including the one in question, has been carried out without sending the updated notice, as proof of the utmost attention to the protection of customer data in the exercise of business activity.

The company, in conducting a thorough assessment of the interests at stake, in order to fairly balance the business interest with the safeguarding of the rights of former customers, has identified specific limits in the conduct of the promotion in question, including, for example, a reasonable period of time to

oppose the processing and a reminder of the right to object, which, if exercised, results in exclusion from the contact lists.

In particular, Fastweb deemed the procedure as highlighted above to be legitimate based on what is established by Recital 47 of the Regulation concerning direct marketing, and the internal regulation would confirm this: Article 130, paragraph 1 of the Code, which incorporates Article 13 of Directive 2002/58/EC, should be interpreted as a norm that, exceptionally, legitimizes electronic communications for promotional purposes based solely on the consent of the data subject when these are carried out using automated systems or without the intervention of an operator (a rule that the subsequent paragraph extends to email, messages, and other types of automated communications). Conversely, calls with an operator referred to in paragraph 3 of the same article would fall under the general regulation, applying Articles 6 and 7 of the Regulation.

In this context, the fourth paragraph on so-called soft spam, in legitimizing the use, in the absence of consent, of customers' email addresses for direct marketing purposes limited to services or products of the data controller similar to those subject to a previous sale, would express a general principle, applicable, albeit only within the scope of relations with the Customer Base, also to contact data other than email, such as phone numbers.

In this sense, a passage from the previous provision no. 112 of March 25, 2021 is also recalled, where it is not excluded that "contacts based on legitimate interest may concern commercial proposals related to services already offered to the customer," as well as a general provision from the Spanish supervisory authority, no. 1 of June 26, 2023, which reiterates the suitability of legitimate interest as a legal basis for processing personal data in the context of direct marketing, provided that the processing is limited to similar products or services previously purchased by the customer. legal basis, in general, for communications for advertising purposes.

With reference to the method of opposition and management of consents (point A.2 of the submissions), the company deemed the web form under examination compliant with the current regulatory framework, as the legal basis indicated to justify all contested processing, namely legitimate interest, would be unique for all contact data processed for promotional purposes: therefore, it would not be necessary to highlight any distinctions within it since the data subject can exercise their opposition to the aforementioned processing both with respect to the overall purpose and by opting for specific contact channels (email, phone, SMS).

As for communications with former customers (point A.3 of the submissions), Fastweb decided not to limit the retention aimed at sending promotional content to only the channel deemed less invasive, namely email, primarily because Article 130 of the Code, in the interpretation offered by the party, would consider contact via telephone less invasive and therefore preferable to the email address (the former indeed retains margins of use even in the absence of consent, while the latter is assimilated to automated systems and usable only with prior consent). Secondly, also in terms of the effectiveness of the promotional message, the company believes that a message conveyed verbally, being more "human," can surpass that which is written, colder and asynchronous, especially in the case at hand where the offer is formulated in the predominant interest of the recipient and usually concerns the updating of infrastructures.

Also from the perspective of data retention, Fastweb represented that the retention of personal data of former customers for a period of 24 months would be legitimate, reiterating that the qualified relationship between the data controller and the processor does not cease as a result of the conclusion of the contract and therefore the identified retention period seems appropriate to the purposes, also in light of ensuring the best infrastructural technology available on the market and in light of the jurisprudence of the Guarantor on customer loyalty programs (provision of February 24, 2005, in www.gpdp.it, web doc. no. 1103045).

In any case, consistent with the fact that, according to the data controller, the legal basis for processing both types of data is identical (that is, once again, legitimate interest), the retention period should also be the same (moreover, a differentiation would entail the development of unsustainable business

processes, as the proposal or offer of the service would not be abstractly categorizable based on its effectiveness of transmission via email rather than through the use of the phone number).

Thus reaffirming the need, regarding the retention period for promotional purposes, to align all contact data on a common threshold, the company acknowledged that the retention limit of 24 months may be subject to changes.

With reference, then, to point B), concerning the violation of the principles of fairness and transparency of the information, already subject, for other aspects, to the previous sanctioning provision no. 221 of March 25, 2021, Fastweb reiterated the correctness of its actions: the sending of communications for the purpose of "updating the offer," although attributable, in the opinion of the Company, to the management of the contractual relationship, has instead been linked to the different legal basis of legitimate interest, due to the promotional characteristics of the communications themselves.

More precisely, the company deemed this formulation not misleading as, considering it correct to base this latter type of processing (where also conducted through telephone contact) on legitimate interest, it did not consider it necessary to separate its treatment nor to place it in paragraph no. 6 dedicated to processing based on consent.

Regarding point C), concerning the failure, incomplete or delayed response to requests for the exercise of the rights of data subjects pursuant to Articles 15-22 of the Regulation, it is necessary to distinguish:

- file no. 323331 – the applicant reported the occurrence of a modification, which they claim was not requested, of marketing consents for telephone contact. However, it was the same applicant who requested the revocation of marketing consent precisely during an unwanted contact. The response occurred with subsequent communications from the company's "no-reply" email address, which the applicant confirmed receiving;
- files nos. 325741 and 317883 – following the termination of the contract, the complainant requested the deletion of their data from the company; within 30 days from the request, Fastweb represented a generic impediment consisting of a malfunctioning customer position closure system. Following numerous reminders, the data subject, once the deadlines for responding to the inquiry had expired, filed a complaint with the Authority. Following the opening of the file and during the ongoing dialogue with the Office (in the case of file no. 325741, also with a request for information and a simultaneous invitation to adhere to the company pursuant to Article 157 of the Code of January 8, 2024, ref. prot. 1915/24), the company, albeit belatedly compared to the original request (and, in the case of file 325741, in adherence to the Office's requests), proceeded to delete the personal data of the data subject;
- file no. 292562 – a customer, following the...

****Termination of the Contract for Fixed Network Service****

The complainant has reported that the data recorded on the waybill for the return of the modem was transcribed incorrectly, particularly their postal address. In response to the request for correction, the company replied with a delay of over five months, stating that the address listed on the letter (in both the recipient's and sender's fields) was that of the carrier appointed by Fastweb to receive the modem delivery, whose processing was authorized for contractual reasons. Therefore, in this case, there was no error but a simple operational indication for the correct dispatch of the package;

- ****File No. 316719**** – The complainant reported various fraudulent phone contacts from individuals claiming to be Fastweb operators, aimed at migrating to another operator. The phone numbers cannot be traced in any way to the Company, which, following the report, immediately reported them to the Public Prosecutor's Office. On the assumption that the processing was carried out on behalf of or with the participation of Fastweb, the complainant exercised their rights under Articles 15-22 of the Regulation, and the Company provided feedback directly through the contacted call center operator;
- ****File No. 331661**** – The complainant, in response to several unwanted promotional contacts from the company in question, submitted a request for damages via certified email (PEC), while simultaneously revoking the marketing consent given at the time of the contract conclusion with

Fastweb. The company, after more than a month from receiving the inquiry, positively responded to the request of the interested party.

****2) EVALUATIONS OF THE AUTHORITY****

It should be noted that this provision addresses the overall phenomenon of unwanted marketing and telemarketing, for which the Company has been the recipient of numerous measures from the Authority over the years.

In particular, the following measures are noteworthy: No. 300 of October 18, 2012 (available at www.gpdp.it, web doc. No. 2368171), No. 235 of April 18, 2018 (available at www.gpdp.it, web doc. No. 9358243), No. 441 of July 26, 2018 (available at www.gpdp.it, web doc. No. 9040267), and No. 112 of March 25, 2021 (available at www.gpdp.it, web doc. No. 9570997), which imposed prescriptions, prohibitions on processing, and administrative sanctions in relation to millions of contacts via phone and SMS, which Fastweb and its sales network carried out without obtaining appropriate consent from the contacted individuals.

Specifically, the last measure No. 112 of March 25, 2021, following an in-depth investigation, culminated in the injunction of multiple measures, including the prescriptions under Article 58, paragraph 2, letter d) of the Regulation to:

- Adjust telemarketing processing to ensure and demonstrate that the activation of offers and services and the registration of contracts occur only following promotional contacts made by the Company's sales network through registered and ROC-listed phone numbers;
- Reformulate the information regarding the "Call me back" service by specifically indicating the methods of re-contact by Fastweb S.p.A. and, also in relation to the aforementioned service, to provide an automated method for deactivating the service;
- Adjust security measures for access to its databases to eliminate or significantly reduce the risk of unauthorized access and processing not compliant with the purposes of collection;

More generally, regarding telemarketing and tele-selling, the Authority has adopted numerous measures that have outlined the regulatory framework, including those concerning other companies operating in the national territory, among which are measures No. 143 of July 9, 2020, available at www.gpdp.it, web doc. No. 9435753; No. 224 of November 12, 2020, available at www.gpdp.it, web doc. No. 9485681; No. 183 of April 13, 2023; and No. 81 of February 8, 2024, available at www.gpdp.it, web doc. No. 9988710.

****2.1) Regarding the Consolidation of Proceedings****

The two proceedings initiated separately deserve to be consolidated pursuant to the aforementioned Regulation of the Guarantor No. 1/2019. They concern, on one hand, the identity of issues, namely the programming and sending of electronic communications in the absence of an appropriate legal basis, contested in both the first and second initiation acts of the proceedings.

On the other hand, the additional charges characterizing the second proceeding concern the same data controller, albeit for different processing of personal data (Article 10, paragraph 4 of Regulation No. 1/2019). Conversely, it is important to note that the separate handling of the proceedings and their independent resolution would lead, in addition to a duplication of measures on closely related issues, to the possible valorization, to the detriment of the data controller, of one as a prior violation of the other, relevant as an aggravating circumstance under Article 83, paragraph 2, letter e) of the Regulation.

****2.2) With Reference to the First Proceeding****

With reference to the first of the two allegations (point D1), Fastweb's defenses appear to be well-founded. In particular, recently the CJEU in its judgment of the Third Chamber, January 25, 2024 (case C-687/21, BL against MediaMarktSaturn Hagen-Iskrlohn GmbH) reiterated that the technical and organizational measures implemented by the data controller require a concrete adequacy assessment: in that case, the fact that an employee of the data controller, through conduct...

isolated, would have mistakenly delivered to a third party not authorized a document containing confidential data, by itself does not appear sufficient to deem the preventive measures adopted by the holder inadequate. This is even more true in the case of the Fastweb employee in question, who directed insulting communications to a stranger that were not related to the work context, and did so not by mere error but intentionally.

With reference to the violations subject to the contestation D2 regarding telemarketing, it is necessary to make some distinctions.

First of all, it should be noted, also following the defensive observations, that the numbers contacted during the sample period for the remote purchase of Fastweb services amount to 226 and not 511: the Company has clarified that the remaining numbers refer to "in-person" sales within Fastweb stores.

Among these 226, the contacts must be distinguished into three categories:

- 34 are inbound contacts and constitute the telephone activity received on the toll-free number.
- 139 are web sales contacts, that is, telephone follow-up activities following a request made via the web on the company's site. This is a very common phenomenon among telephone companies, which Fastweb has already had to correct following the aforementioned provision no. 226 of March 25, 2021 (albeit for different profiles than those in question), based on which the Company initially receives an expression of interest for a generic follow-up, if applicable, even for promotional purposes, registering it through a dedicated web portal and with the times and methods provided in the privacy notice, and then proceeding at a later time with the follow-up.
- 53 are outbound contacts, telephone contact activities only outgoing on numbers for which consent is initially acquired.

Regarding the first category, the consents expressed through requests for follow-up to the toll-free number (inbound telesales) appear suitable to legitimize the subsequent contacts that occurred after January 31, 2023, the date taken as a reference by this Authority to verify the registration in the RPO of the contacted numbers.

In fact, Article 1, paragraph 6 of Law No. 5 of January 11, 2018, containing new provisions regarding registration and operation of the opposition register and establishment of national prefixes for telephone calls for statistical, promotional, and market research purposes, states that registration in the RPO cancels only the consents previously granted: those in question, being subsequent, do not undergo the effect of registration and therefore serve to legitimize the subsequent follow-ups for promotional purposes.

This is sufficient to justify the inbound contacts, for which the expression of consent occurs simultaneously with the telephone contact: since there is no interval between the two moments, it cannot even be hypothesized that any request for registration in the RPO intervenes in the intermediate period.

Conversely, in the case of the 82 web sales contacts acquired through the specific call me-back function on comparison sites, while it is true that these consents are also subsequent to the date of registration in the RPO, there remains a time gap between the entry of the phone number and the follow-up, which can start on the same day but usually extends over several days.

During this time frame, it may happen that the interested party, due to a change of mind, renews their registration in the RPO, resulting in the cancellation of, among the new marketing consents, also that granted through web sales.

In fact, on one hand, it is specified that marketing consent is entirely optional: if the relevant box is not checked, it is still possible to successfully send the follow-up request for the number for purely pre-contractual purposes.

Moreover, pursuant to Article 6, paragraph 1, letter a) of the Code of Conduct for telemarketing and tele-selling activities (Garante provision no. 70 of March 9, 2023, published in the Official Gazette no. 73 of March 27, 2024, and which can be invoked as best practice regardless of its direct applicability to

the case at hand), a procedure should be provided for which there is no trace on the web page of the service in question, namely the so-called double opt-in, based on which the consent acquired online is confirmed by the interested party in response to an automatic verification message sent immediately after the transmission of the phone number. This allows verifying that the person to be contacted is indeed someone interested in the offer, and not a third party.

Finally, since the procedure for registration in the RPO is completed within one working day, if the follow-up is scheduled and occurs on a day subsequent to the acquisition of marketing consent in the described manner (which is quite possible based on the information collectively present on the site and summarized here), the company has not demonstrated that it adopted, for the intermediate period in question, procedures for verifying registrations in the RPO.

It should also be noted that, regarding the 82 follow-ups that occurred in these ways from the so-called comparators (websites that allow the interested party to compare different operators based on the requested service, e.g., XX), the company in the supplementary notes of the hearing of December 5, 2023 (ref. prot. incoming no. 168558/23, p. 2), states that the time period that elapses between the expression of interest and the signing of the contract is usually a few days.

It should be noted that the above-mentioned criterion, based on which if the contact occurs after a delay of

the customer must obtain prior consent for any promotional communications, unless the communication falls within the exceptions provided for in the law;

- the consent provided by the customer in the context of a specific contractual relationship is valid only for that relationship and cannot be extended to other types of communications without explicit consent.

In conclusion, the legal framework established by the relevant regulations emphasizes the necessity of obtaining consent for promotional communications, particularly in the context of outbound calls and electronic communications. The failure to adhere to these requirements, as evidenced by the lack of proper consent documentation and the absence of prior checks against the Public Opposition Register, constitutes a violation of the applicable laws and regulations governing marketing practices.

an interested party may carry out promotional telephone communications towards the latter only if they can document the possession of an appropriate consent. This, in fact, remains valid despite the registration of the number in the RPO, and even more so justifies the processing in the absence of any opposition.

- The registration in the RPO does not revoke the customer's consent, for which, due to its particularly qualified position, other forms of revocation are provided. This demonstrates that the processing of customer data for advertising purposes is always supported by their consent, albeit revocable differently compared to those who, not being customers, use the RPO to oppose it.

2.3) with reference to the second proceeding;

Also during the second proceeding, the main violation that emerged was having led its customers to have to take action to refuse treatments that should always be prohibited by law by default.

First of all, regarding the defensive observation concerning the identity of the number of the current proceeding with that which led to the adoption of the aforementioned provision no. 112 of March 25, 2021, it is highlighted that the file number is merely a container, which does not uniquely identify a single proceeding but serves the Office to classify acts, being attributable also to distinct proceedings, some concluded and others ongoing.

Regarding point A.1 of the party's submissions, the following is noted.

The mentioned recital no. 47, which does not have the force of law, should not be referred to electronic communications, which are instead governed by the aforementioned art. 130 of the Code, with which the described corporate consent system is in direct contrast.

The applicable regulation to the illustrated case requires, as examined in the previous paragraph, consent as the sole legal basis for the processing of telephone data for promotional purposes, regardless of whether the subjects are already customers. The legitimate interest cannot be invoked as the legal basis for marketing activity, as declared by the Company in its response, since, in

derogation of art. 130, paragraph 4, of the Code, which governs the cases of so-called soft spam allowing, under specific conditions, the sending of promotional communications without the consent of the interested party exclusively through the email channel, any other promotional communication made outside of such conditions and using a different channel falls under the more general regulation of art. 130 of the Code, which provides as a legal basis only the consent of the interested party. As illustrated in the previous paragraph, in fact, art. 1, paragraph 5, last sentence of law no. 5 of January 11, 2018, in establishing that for existing (or terminated less than thirty days ago) contractual relationships, registration in the RPO does not affect the revocation of consent for marketing purposes, presupposes precisely such consent as the legal basis for promotional processing even when these refer to their own customers.

Fastweb commits the interpretative error of considering the regulation of art. 130, paragraph 4 of the Code as exceptional only concerning the first two paragraphs of the article in question, which provide consent as the sole legal basis for automated calls. Not recognizing, instead, that the norm has special scope also concerning paragraph 3 (which concerns operator calls to public numbers), it erroneously considers it, like the latter, a further recognitive provision of arts. 6 and 7 of the Regulation susceptible to analogical application to all relationships, for promotional purposes, with the customer base, regardless of the choice of contact method, which would be left to the discretionary assessment of the holder rather than bound by the legislator to only email.

By virtue of this reading, the company believes it is authorized to adopt legitimate interest as the legal basis for promotional activity tout court towards its customers, not only via email but also through the traditional channel. This interpretation is in obvious contrast with the law in question.

Art. 130, paragraph 4 not only does not refer to the general regulation of arts. 6 and 7 of the Regulation, but rather establishes a derogatory regulation concerning both this and that specific in the matter of electronic communications for commercial purposes (arts. 130, paragraphs 1-3-bis of the Code).

The norm indeed does not identify a different legal basis for so-called "soft spam" towards its customers; it simply limits itself to not deeming any necessary under the occurrence of the two conditions provided therein: one subjective concerning the audience of recipients, namely the customers; the other, objective, concerning the contact method, namely the email address and the content of the promotional message, which must be similar to the service previously purchased, so as to imply interest.

Only in the presence of these conditions does the rationale exist to privilege the qualified relationship already established as a result of the conclusion of a contract, being able to disregard consent. Precisely because of the certainly exceptional scope of the norm in question, every form of analogy legis must be rejected, which is why every promotional communication made, even to its own customers, using means other than email, such as hypothetically the telephone number, necessitates the choice of a specific legal basis, thus falling into the more general regulation of art. 130 of the Code. in the more general regulation of Article 130 of the Code and, in particular, to the principle of opt-in. Moreover, the passage from the Garante's provision no. 112 of March 25, 2021, referenced in the parties' submissions, is drawn from the argumentative process supporting the judgment of ascertaining the violation that consisted of conducting marketing activities solely based on the legitimate interest concerning services not provided by the data controller but rather by third parties, with whom the data subject is completely unrelated and does not have that qualified relationship which they only have with the data controller and which would suggest their interest in receiving offers.

In this second proceeding, however, the legitimate interest is invoked not concerning the content or origin of the message, but rather the means of electronic communication used to convey it, given that this cannot be represented by the customers' phone numbers, but only by the email address. Therefore, the violation, which in this provision is contested regarding the channel chosen for the transmission of the promotional content, namely the conduct of marketing activities towards its customers in the absence of consent, is the same that in the previous provision was attributed with reference to the origin of the message from a third-party company.

For all the reasons stated, the structure of Fastweb's promotional communications through electronic

means towards its customers is to be considered unlawful for violation of Article 6, paragraph 1, letter a), 7 of the Regulation and Article 130 of the Code, as it is based on opt-out and undue non-opposition to legitimate interest, instead of on opt-in. In this sense, the methods of opposition and management of consents also appear to be in conflict with the regulatory framework under examination (point A.2 of the submissions).

In fact, since the legal basis for the processing of data for telemarketing purposes varies depending on the means by which the promotion occurs (by telephone with an operator, by telephone without an operator, or with other automated messages, via email or, finally, via postal mail), it must be justified in a differentiated manner for each of them: the processing for purposes referred to in Article 130 of the Code of the telephone data of customers/former customers can never be based on blanket assessments regarding the legitimate interest of the data controller, but rather requires consent as the only condition of legitimacy, and for this purpose, the consent collection form must reproduce this regulation.

On the contrary, the consent management form of the Company allows the data subject, on one hand, only to oppose outright the receipt of promotional communications and, on the other hand, in the event of non-opposition, to express preferences regarding the contact channel. Consequently, the described model conflicts with Article 130 of the Code both because it frames the reception of promotional electronic communications as an opposition rather than as prior consent to processing, and because, for electronic communications via telephone, it does not expressly link consent as the only legal basis provided by Article 130 of the Code, thereby distinguishing them from those that occur through other channels.

With specific regard to communications to former customers (A.3 of the submissions), the choice of a legal basis different from that provided by law is, in itself, sufficient to demonstrate the illegitimacy of the processing in question. Additionally, concerning the application of the principle of minimization, according to Fastweb and contrary to what the Office has argued, the data to be retained would be the phone number, as it is less invasive than the customer's email credentials, the following is noted.

It is not the Authority, but Article 130 of the Code in question that considers email credentials as less invasive data when it links them to greater possibilities of processing, which is indeed lawful even without consent (cf. soft-spam); instead, via telephone, no advertising communication is ever legitimate in the absence of prior regular consent to processing, as widely illustrated. Moreover, even if one were to absurdly and conversely argue that retaining only the customers' phone numbers is more appropriate and relevant, the company has not argued why, in such a case, it has consequently excluded from retention other data deemed superfluous.

In fact, it is true that within the scope of minimization, the company is called to adapt the processing to the specific purpose it pursues; however, the moment of evaluation must culminate, in practice, in the self-limitation of certain processing activities, deemed unsatisfactory from the perspective of the invasiveness/effectiveness ratio and thus avoided. Fastweb does not accept this conclusion, reserving the retention of data deemed less useful, namely emails, even if subsidiarily, which constitutes a further violation of the principle of minimization.

Also, regarding the fact that the choice of the preferred channel would always be left to the data subject, because they are only asked to oppose each of these channels, this is not a substantiated statement: in fact, it is reiterated that, even in the absence of any choice, Fastweb considers the sending of advertisements lawful, indiscriminately, through each contact means, including the phone number, which again contradicts the referenced regulation. For completeness, and without prejudice to the above-mentioned criticisms.

request for correction. In the case of file no. 331661, regarding the request for opposition to the processing of personal data submitted on 15 September 2023, the company responded only on 10 January 2024, again with a delay of nearly four months.

In summary, the delays in responding to requests for the exercise of rights under Articles 15-22 of the Regulation are evident in all the aforementioned cases, indicating a failure to comply with the time

limits set forth in Article 12, paragraph 3 of the Regulation. This non-compliance raises concerns regarding the company's adherence to the principles of transparency and accountability as mandated by the Regulation.

In light of the above, it is crucial for the company to implement measures to ensure timely responses to data subjects' requests in accordance with the legal requirements, thereby safeguarding the rights of individuals and maintaining compliance with applicable data protection laws.

****Delay.**** The request in question, in fact, although unfounded in substance due to a confusion by the interested party between the address of their residence and that of delivery, still requires processing and a response within the aforementioned legal terms (all the more so considering how easily it could have been resolved). Finally, case file no. 331661 also sees a request for opposition to processing submitted on December 4, 2023, and responded to only on January 9, 2024.

Indeed, although the request was unfounded to the extent that the marketing consent, contrary to what was claimed by the applicant, had indeed been granted at the time of the conclusion of the contract (albeit in the form of a lack of opposition, thus irregularly, as extensively illustrated in the previous paragraph), it was immediately reclassifiable as a revocation of that consent and as such could have been responded to promptly within the legal deadline starting from its submission.

For the reasons extensively illustrated, the responsibility of Fastweb S.p.A. regarding the violations contested through the initiation communications pursuant to Article 166, paragraph 5, of the Code of October 12, 2023, and February 29, 2024, must therefore be confirmed.

****3) CONCLUSIONS****

For the reasons stated above, the responsibility of Fastweb regarding the following violations is deemed established:

- a) Article 130 of the Code (in relation to Article 5 of Presidential Decree No. 26 of 2022), and Articles 5, paragraph 2, 24, paragraph 1 of the Regulation for failing to consult the Public Opposition Register, in relation to 82 numbers contacted after the day of acquisition of consent for sending promotional communications via web sales;
- b) Article 4, no. 11), 5, paragraph 2, 6, 7, 24, and 25 of the Regulation and 130 of the Code for having provided for the sending of commercial communications to the telephone number of its customers during the contractual relationship and even up to 24 months after termination, based on mere legitimate interest instead of consent.
- c) Article 5, paragraph 1 letters a), c), and e); Article 5 paragraph 2; Article 6; Article 21, paragraph 2; Article 24, paragraph 1; Article 25 of the Regulation and 130 of the Code, all for having carried out the above-described processing of personal data of its customers in violation of the principles of lawfulness, fairness, and transparency of processing, with reference to data minimization, purpose limitation, accountability, in the absence of an appropriate legal basis, implementing technical and organizational measures that were inadequate to ensure, from the design stage, and to be able to demonstrate, that the processing is carried out, in every aspect and at any stage and/or level, in accordance with the Regulation;
- d) Article 12, paragraph 1, and 13 of the Regulation for having provided an information notice lacking in clarity, transparency, and adequacy with reference to the legal bases for the processing of customer contact data for promotional purposes;
- e) Articles 12, paragraph 3; 15-22 of the Regulation for failing to respond within the terms to the inquiries of the interested parties in case files 325741, 317883, 292562, and 331661.

The unlawfulness of the Company's conduct regarding the processing under examination is also established, making it necessary to:

- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter f) of the Regulation, to prohibit the processing of all numbers for which marketing consent was acquired through web sales;
- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter e) of the Regulation, to inform all holders of numbers acquired in this manner of the violation committed through their recontact based on uninformed, non-specific, and non-unequivocal marketing consent;
- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adopt a

procedure for consulting the Public Opposition Register with respect to the telephone numbers recontacted starting from the day following the acquisition of web sales marketing consents, ensuring compliance also with respect to the data processors;

- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to implement a double opt-in system, whereby consent acquired online is always confirmed by the interested party in response to an automatic verification message sent immediately after the transmission of the telephone number;
- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to reformulate the information notice regarding the treatments that comprise "the update of the offer," treating it separately from the chapter on service provision and basing it on as many legal bases as those provided by law for the chosen contact channels for promotional activity, specifying that, for telemarketing to reserved numbers, the only legal basis allowed is that of consent;
- order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adjust the "consents and contact preferences" form so that, in cases where consent is the only legal basis, such as for marketing calls to reserved numbers, the interested party is placed in a position to express it in the forms provided by law, in particular: prior to any processing operation, including storage; in express form, and not by lack of refusal or non-opposition; both...

specifically referring to the type of electronic communication to be adopted, whether it be SMS, automated call, or with an operator; it must be formulated in such a way as to allow the interested party to consent or deny a specific activity, and not simply to prefer or not prefer it;

- to order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to inform the applicants regarding the four files no. 325741, 317883, 292562, and 331661 that it has encountered unjustified delays and has therefore been recipients of this provision;
- to order Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to conclude the examination of the requests regarding the exercise of the rights of the interested parties within the time frame provided by law, with an express and reasoned provision;
- to adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Fastweb of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation;

4) INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

The violations indicated above necessitate the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Fastweb of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to € 20,000,000.00 or, for companies, up to 4% of the annual worldwide turnover of the previous financial year, if higher);

For the determination of the maximum penalty amount, it is therefore necessary to refer to Fastweb's turnover, as derived from the latest available financial statement (December 31, 2023) in accordance with previous measures adopted by the Authority, and thus this maximum penalty is determined, in the case in question, at € 106,444,795.00, equivalent to 4% of the turnover indicated in the ordinary financial statement for the year 2023.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation;

In the case at hand, the following are relevant:

1) the seriousness of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the data processed, related to the overall phenomenon of unwanted telemarketing, regarding which the Authority has adopted, particularly in the last four years, numerous measures that have thoroughly examined the multiple critical elements providing the holders with numerous indications to adapt the processing to current regulations and to mitigate the impact of nuisance calls on the interested parties, most recently the Code of Conduct on telemarketing and tele-selling published in the Official Gazette on March 27, 2024;

2) the circumstance that, in the previous sanctioning measure adopted by the Guarantor (No. 112 of March 25, 2021), Fastweb settled the dispute with a reduced payment, which determines, pursuant to

Article 8-bis, paragraph 5, of Law No. 681/1989, the non-applicability of the aggravating factor referred to in Article 83, paragraph 2, letter e, of the Regulation;

3) as a mitigating factor, the degree and quality of cooperation shown with the Supervisory Authority in order to remedy the violation and mitigate its possible negative effects (Article 83, paragraph 2, letter f) of the Regulation);

4) as a mitigating factor, compliance with the previous measure of the Guarantor No. 221 of March 25, 2021, ordered against Fastweb (Article 83, paragraph 2, letter i) of the Regulation);

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for by Article 83, paragraph 1, of the Regulation, it is deemed that Fastweb should be subjected to the administrative sanction of paying an amount of € 1,000,000.00, equivalent to 0.93% of the maximum penalty and 0.03% of the annual turnover.

In this case, it is considered that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, taking into account the nature of the processing and the conduct of the Company, as well as the risk elements for the rights and freedoms of the interested parties.

Finally, the prerequisites referred to in Article 17 of Regulation No. 1/2019, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are present.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

- orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition on the processing of all numbers for which marketing consent was obtained through web sales;
- orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter e) of the Regulation, to inform all holders of numbers acquired through these methods of the violation committed by means of their re-contact based on uninformed, non-specific, and non-unequivocal marketing consent;
- orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adopt a procedure for consulting the Public Opposition Register with references to the phone numbers re-contacted starting from the day following the acquisition of web sales marketing consents, monitoring compliance also with respect to the data processors;
- orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to employ a double opt-in system, according to which the

****Online consent is always confirmed****

by the interested party in response to an automatic verification message sent immediately after the transmission of the phone number;

- Orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to reformulate the information regarding the treatments that make up the "update of the offer", treating it separately from the chapter on service provision and basing it on as many legal bases as those provided by law for the chosen contact channels for promotional activities, specifying that, for telemarketing to reserved numbers, the only legal basis allowed is that of consent;
- Orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adjust the "consents and contact preferences" form so that, in cases where consent is the only legal basis, such as for marketing calls to reserved numbers, the interested party is placed in a position to express it in the forms provided by law, in particular: prior to any processing operation, including retention; in an express form, and not by lack of refusal or non-opposition; specifically related to the type of electronic communication to be adopted, whether SMS, automated call, or operator call; formulated in such a way as to allow the interested party to consent or deny a specific activity, and not simply to prefer or not prefer it;
- Orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to inform the applicants in the four files no. 325741, 317883, 292562, and 331661 that they have encountered unjustified delays and have therefore been recipients of this provision;
- Orders Fastweb S.p.A., pursuant to Article 58, paragraph 2, letter d) of the Regulation, to conclude the examination of the requests regarding the exercise of the rights of the interested parties within the time frame provided by law, with an express and reasoned provision;
- Orders Fastweb S.p.A., pursuant to Article 157 of the Code, to communicate to the Authority, within

30 days from the notification of this provision, the initiatives undertaken in order to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation;

****ORDERS****

Fastweb S.p.A., represented by the legal representative pro tempore, with registered office at Piazza Adriano Olivetti n. 1 Milan, C.F. and P.IVA. 12878470157 to pay the sum of €1,000,000.00 (one million/00) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8, of the Code has the option to settle the dispute, by complying with the prescribed measures and paying, within thirty days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €1,000,000.00 (one million/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law no. 689/1981.

****DISPOSES****

The application of the accessory sanction of publication on the Authority's website of this provision, provided for by Articles 166, paragraph 7 of the Code and 16 of the Authority's Regulation no. 1/2019, and the annotation of the same in the internal register of the Authority - provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Articles 152 of the Code and 10 of Legislative Decree no. 150/2011, against this provision, an opposition may be proposed to the ordinary judicial authority, with an appeal filed with the ordinary court of the place where the data controller has its registered office, within thirty days from the date of communication of the provision itself.

Rome, June 20, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei